

The Bihar Co-operative Service Rules, 1975

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State of Bihar - Act

The Bihar Co-operative Service Rules, 1975

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The Bihar Co-operative Service Rules, 1975

Rule THE-BIHAR-CO-OPERATIVE-SERVICE-RULES-1975 of 1975

Published on 10 February 1976

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The Bihar Co-operative Service Rules, 1975

Published vide Notification No. 281/ 10/S. 1 (7)-035/76/ Patna, dated 10th February, 1976

No. 281/[10/S.1 (7)-035/76]/Patna, the 10th February, 1976. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India, the Governor of Bihar is pleased to make the following rules to be known as the Bihar Co-operative Service Rules, for Regulation of recruitment and conditions of Sen/ices of the persons appointed to the Bihar Co-operative Service:-

Part I ? General

1.

Short Title and Commencement.

- These Rules may be called the Bihar Co-operative Service Rules, 1975 and shall take effect from the date of this Notification:

Provided that nothing in these Rules shall be construed as affecting or invalidating an appointment already made or an order issued in connection therewith, and that all such appointments and orders shall continue to be in force and shall be deemed to have been made or issued under the appropriate provisions of these Rules.

2.

Definitions.

- In these Rules, unless there is anything repugnant in the subject or context:

(i)

"Appendix" means an appendix appended to these Rules;

(ii)

"Commission" means the Bihar Public Service Commission;

(iii)

"Co-operative" Institution means a society registered under Section 11 of the Co-operative Societies Act, 1935;

(iv)

"Government" means the Government of Bihar;

(v)

"Governor" means the Governor of Bihar;

(vi)

"Member of the Service" means a person appointed on a post in the service under the provisions of these Rules.

(vii)

"Registrar" means a person appointed by the State Government under Section 6 of the Bihar Co-operative Societies Act, 1935;

(viii)

"Scheduled Castes" means the castes specified in the Scheduled Castes and Scheduled Tribes Lists (Modification) Order 1966(s/c.?)

(ix)

"Scheduled Tribe" means the tribes specified in the Scheduled Castes and Scheduled Tribes Lists (Modification) order 1966(s/c.?)

(x)

"Service" means the Bihar Co-operative Service.

3.

Cadre.

- (i) The Bihar Co-operative Service shall consists of classes of officers:-

(a)

Bihar Co-operative Services Class-I

(b)

Bihar Co-operative Services Class-II (Senior Br.)

(c)

Bihar Co-operative Services Class-II (Junior Br.)

Notes. - For a list of Class-I and II (Senior and Junior) Services (See Appendix-A).

(ii)

The Governor of Bihar shall from time to time determine the number of posts to be included in the respective cadres of the services and may include additional permanent or temporary posts in the cadres of each Services or may drop in abeyance or leave unfilled any post or posts in each cadres.

4.

Status.

- The member of the Bihar Co-operative Service shall have Gazetted Rank.

Part II ? Recruitment

5.

Source of Recruitment.

- Save as otherwise provided recruitment to the services shall be made:-

(a)

By direct recruitment in accordance with the Rules in Part III.

(b)

By promotion in accordance with the Rules in Part IV.

(i)

To the Class I from Class II (Senior Branch)

(ii)

To the Class II (Senior Branch) from Class II (Junior Branch)

(iii)

To the Class II (Junior Branch) as laid down in Part IV:

Provided further that an officer who is appointed to the Class II (Junior Branch) shall not be eligible for promotion to Class II (Senior Branch) if he has not completed at least 3 years of service from the date of his appointment to the Class II (Junior Branch) and has not passed the departmental examination as prescribed in Rule 35.

(c)

Posts not filled in accordance with Rules (a) or (b) above may be filled up by deputation of officers from the Bihar Civil Services or from any other services.

6.

Fixation of Vacancies.

- The Governor of Bihar shall decide in each year the number of vacancies in Class II (Junior) Branch to be filled in that year separately by direct recruitment and by promotion and the sources from which they shall be filled:

Provided that the number of vacancies to be filled by promotion in the Class II (Junior Branch) in any one year shall not be more than 66% of the total number of vacancies to be filled up in any such year.

Part III ? 7. Direct Recruitment by Competitive Examination.

- The Commission shall announce in each year, in such manner as they think fit the number of vacancies in Class II Services (Junior Branch) to be filled by direct appointment on the result of Competitive Examination and shall invite applications from candidates eligible for appointment under Rules 8 and 9. The Competitive Examination shall be conducted by the Commission and shall normally be held, between the months of November and February, unless, otherwise notified.

The Commission may fix a limit in any particular year as to the number of eligible candidates to be admitted to the Examination and if the number of candidate exceeds the limit fixed, the Commission may make a preliminary selection of candidates to be admitted to the written examination on the basis of their academic records:

Provided that no member of the Scheduled Castes or the Scheduled Tribes who is eligible under the Rules shall be excluded from appearing at the Written Examination.

8.

Age and Academic Qualification of Candidates.

- A candidate may either be a male or female and;

(a)

be not more than 27 years and less than 21 years of age on the 1st day of August last preceding the month in which the examination is held;

(i)

in the case of candidates belonging to the Scheduled Castes or the Scheduled Tribes the upper age limit shall be 32 years;

(ii)

in the case of candidates who are bonafide displaced persons from Pakistan, there shall be no upper age limit, but such candidates shall be allowed to avail in consecutive years, only of the same number of chances to appear at the examination as are permissible to candidates to whom the normal age limits apply;

(iii)

in case of non-official employees serving in Co-operative Institutions, with not less than six years of continuous service in an Institution who possess other qualifications, the upper age limit will be 40 years, if their applications are supported by a Certificate to this effect by an Officer of the Co-operative Department not below the rank of a Deputy Registrar.

Academic Qualifications

(b)

Must hold a degree in Arts, Science, Commerce or Agriculture of any of the Universities recognized by the Governor or the degrees declared equivalent to the University degree and notified as such by the State Govt, from time to time:

Provided that a Chartered or Incorporated or Registered Accountant shall also be eligible for the. Audit wing of the Bihar Co-operative Services Class II (Junior Branch).

Notes. - (1) A Registered Accountant is an Accountant who has been enrolled as a Registered. Accountant in the Register of Accountant maintained by the Central Government under the Auditors' Certificate Rules, 1932.

(2)

Persons who hold posts in Government Service are eligible to offer for examination provided that they are within the age limits as prescribed for such recruitment by Government from time to time. Applications from Government Servants who are eligible under the Rules, should be submitted through the Authority empowered to forward the application under the Bihar Government Servants' Applications for Posts Rules, 1956.

9.

Physical Fitness.

(a)

A candidate must be of sound health, good physique and active habits and free from any physical defects likely to interfere with the efficient performance of the duties of a member of the Bihar Co-operative Service, Class II (Junior Branch). A candidate who is found after examination by a Medical Board not fit to satisfy the (sic.?) requirements will not be selected for appointment.

10.

Character.

- A candidate must satisfy the Public Service Commission that his character is such as to qualify him for employment in the Service.

11.

A candidate shall apply to be admitted to the examination in his own handwriting in the prescribed form to the Secretary to the Bihar Public Service Commission not later than such date as may be notified by the Commission in this behalf in each year. The prescribed form and a copy of these Rules are obtainable from the Secretary to the Bihar Public Service Commission.

12.

With his application a candidate must submit:

-

(i)

Evidence that he holds one of the educational qualifications referred to in Rule 8(b).

(ii)

Certificate of character and conduct from the heads of all the colleges at which he has studied since he passed the Matriculation Examination.

(iii)

The names of two persons, as references who know him in private life and are not his near relatives. A candidate must not fill written testimonials of such persons and the references furnished by him should not include College Professors or Principals unless, they know the candidate otherwise.

(iv)

A certificate from any registered medical practitioner in the prescribed form which may be obtained from the Secretary to the Commission.

(v)

Evidence of age which should ordinarily be a copy of the Matriculation Certificate or its equivalent.

Notes. - (1) The certificate and other documents required should be true copies of the originals bearing on such a certificate from Gazetted Officer stating that he has seen the originals and that the copy is a true copy. The candidate may be required to provide the original certificates before the Commission at the time of viva-voce test.

(2)

The age of a candidate as recorded in his Matriculation Certificate will be regarded as correct unless, there is conclusive proof to the contrary. if a candidate claims that his age is other than as so recorded he must submit with his application the evidence on which he bases his claim. In such a case, he will be required to furnish among other evidences, a

satisfactory explanation of the circumstances in which a wrong age was recorded on his form of application for permission to appear at the Matriculation Examination. He will also be required to submit a statement of any attempts made by him to have the University records amended and of the result of such attempts.

13.

Candidates must pay the following fees:

(a)

To the Bihar Public Service Commission. A consolidated Examination Fee of Rs. 55/- (Rs. 13 and paise 75 only in case of candidates belonging to the Scheduled Castes and the Scheduled Tribes) When they first submit these applications provided that the Commission may at its discretion remit the prescribed fee in case of bonafide displaced persons from Pakistan who are not in a position to pay the prescribed fees.

Notes. - The examination fee shall be payable by means of a Treasury Challan to be obtained only from any Treasury in Bihar or crossed Indian Postal Order, payable to the Secretary, Bihar Public Service Commission. The fee paid by means of Treasury Challan should be credited to the head " 051- Public Service Commission-Examination Fees (Receipts)". The fee must not be sent by cheques on Banks or in cash.

14.

(1)

No candidate will be admitted to the examination unless, he/she holds a certificate of admission from the Commission.

(2)

Candidates must see that they are eligible and must decide definitely to apply before depositing the Fees in the Treasury. In order to prevent disappointment, candidates are advised to have themselves examined by a Government Medical Officer of and above the rank of Civil Assistant Surgeon before applying for admission to the examination. No claim for refund of fee will ordinarily be entertained except to the extent stated in Appendix B nor can they be held in reserve for any other examination or selection.

15.

Notwithstanding anything contained in the fore-going provisions of these Rules, the Commission may require a candidate to furnish any such additional proof on any point as to his/her suitability as the Commission may deem necessary.

16.

Subject to the provisions of these Rules, the decision of the Commission as to the eligibility or otherwise for the admission to the examination shall be final.

17.

The examination shall be held according to the Syllabus specified in this behalf by the Government which is liable to alteration from time to time by the Government, as and when necessary.

18.

(a)

If any candidate is found guilty of: -

(i)

resorting to any irregular or improper means for obtaining admission to the examination; or

(ii)

impersonating another candidate or being impersonated by any person at the written or viva-voce examination; or

(iii)

submitting fabricated document or documents which have been tampered with; or

(iv)

making statements which are incorrect or false or suppressing material information; or

(v)

communicating with any person for the purpose of getting help or for any other candidate; or

(vi)

using any other unfairness in the examination hall; or

(vii)

unruly behaviour in the examination hall or violating any instruction issued by the Commission; he may be expelled from the examination hall by the Commission or by any person authorized by them in this behalf. In such cases, the

Commission may also invalidate his answer books or deduct such marks as they consider fit and in addition to rendering himself liable to criminal prosecution, the candidate may be debarred either permanently or for a specified period;

(a)

by the Commission from admission to any examination or appearance at any interview held by the Commission for selection of candidates; and

(b)

by the State Government from employment under Government.

19.

(a)

The Commission shall have discretion to fix the qualifying marks in any or all the subjects at the written examination.

(b)

The minimum qualifying marks for candidates belonging to the Scheduled Castes and the Scheduled Tribes shall not be higher than that for the Bihar Cooperative Services Class II (Junior Branch) unless the number of such candidates qualifying at the written test according to the standards applied for other candidates is considerably in excess of the number of candidates required to fill all the vacancies approved (sic) for the Scheduled Castes and the Scheduled Tribes. Provided that in determining the suitability of a particular candidate for appointment, the total marks obtained at the written examination and not the marks obtained in any particular subject or subjects shall be taken into consideration.

(c)

There shall be no qualifying marks for the viva-voce test.

20.

On the basis of the marks obtained-at the written examination the Commission shall arrange for a viva-voce test of the candidates who have qualified at the written examination according to Rule 19 (a) or (b).

Provided that in exceptional circumstances and with the prior approval of Government, the Commission may at their discretion admit candidates of the Scheduled Castes and the Scheduled Tribes to the viva-voce test even though they may not have obtained the minimum qualifying marks at the written test prescribed in Clauses (a) or (b) of Rule 19.

21.

The marks obtained at the viva-voce test shall be added to the marks obtained at the written examination. The names of the candidates will then be arranged by the Commission in order of merit. From the list of candidates so arranged, the Commission shall nominate such number of candidates as may have been fixed by the Governor. This list shall be submitted to the Governor by such date in each year as the Governor may fix.

22.

The Commission shall while submitting their recommendation under Rule 21 consider the claims of qualified candidates belonging to the Scheduled Castes and the Scheduled Tribes if the list of the nominees submitted under Rule 21 does not contain adequate number of candidates belonging to the Scheduled Castes and the Scheduled Tribes candidates who may be appointed to the vacancies reserved for them in these Services, the Commission shall submit a supplementary list nominating sufficient* number of such candidates as in their opinion attain* the required standard of qualifications and are in all respects suitable for appointment.

23.

The Commission reserve the right to recommend successful(s/c) candidate who is considered suitable. Success at the examination confers no right for appointment unless, Government are satisfied, after such enquiry as may be considered necessary, that the candidate is suitable in all respects for appointment to the Public Services.

24.

Candidates selected for written or viva-voce test will present themselves at their own expense at a time and place of which they will be informed in due course.

25.

A consolidated result of the examination will be prepared by the Commission and a copy of the marks obtained both at the written and the viva-voce test may be supplied immediately to each candidate, soon after the results are compiled and the list referred to in Rule 21 is submitted to the Governor.

Part IV ? Promotion of Officers in Government Service

26.

Promotion of Officers to Bihar Co-operative Service Class II (Junior Branch). -

Not more than 66 % of Class II (Junior) posts shall be filled in by promotion of Non Gazetted Officers subordinate to the Registrar, Co-operative Societies including Ministerial Officers of offices subordinate to the Registrar, both at the headquarters and in the mufassil who have held atleast for three years a post in the pay scale, initial of which is at least Rs. 160/- (Pre-revised):

Provided that in the case of Ministerial Officers, the upper age limit for promotion shall be 40 years:

Provided further that promotions in the Audit Wing shall be made only from Audit staff. The Audit staff will not be considered for promotion to posts in the Department, except in the Audit Wing including the Posts of Lecturers in Audit and Accounts in the Co-operative Training Centres.

Notes. - For promotion to the posts of Lecturers, at least B.A (with Economics Co-operation) or B.Com. degree will be essential.

27.

Procedure for selection for Promotion.

(1)

For purposes of promotion under Sub-Clause (ii) of Clause (b) of Rule 5 a Selection strictly on merit with due regard to seniority in service shall be made from amongst the officers eligible for such promotion under these Rules.

(2)

The Government may by notification appoint a Selection Committee to recommend, after such scrutiny as they like, the names of officers suitable for promotion. The names recommended by the Committee shall be arranged in such a manner as not to change the inter se seniority in a particular gradation.

(3)

If the selection of candidates made by the Committee involves supersession of an officer senior to the one selected, the Selection Committee shall record a memorandum containing reason for such supersession. The names of the candidates recommended by the Committee shall be forwarded to Government with all relevant papers including the memorandum recorded by the Committee containing reasons in support of the proposed supersession. The Government on receipt of the recommendations of the Selection Committee may take such decision as they consider fit before sending the names to the Public Service Commission.

28.

Promotion of Officers to Class II (Senior Branch).

- Ordinarily 100 percent of Class II (Senior Branch) posts shall be filled up by promotion of suitable Officers from Class II (Junior Branch) in order of seniority:

Provided that no officer will be eligible for promotion to the Class II (Senior Branch) posts:-

(1)

Within 3(three) years from the date of his Appointment in Class II (Junior Branch), and (2) unless, he has successfully passed the Departmental Examination prescribed in Rule 35.

29.

Promotion of Officers to Class I.

- Ordinarily 75 % of the Class I Posts shall be filled up by promotion of officers from Class II (Senior), if there are any, otherwise from Class II (Junior) provided they fulfil the condition laid down for promotion to Class II (Senior) posts. The selection shall be made strictly on merit with due regard to seniority.

30.

The Commission shall advise the Governor in respect of each candidate nominated whether he is suitable for promotion and whether his record prove him to have the requisite character and ability for the service to which it is proposed to promote him and whether, in the opinion of the Commission, the supersession of the Officer recommended to be superseded is justified.

31.

The final selection shall be made by the Governor after considering the recommendations made by the Commission under Rule 30.

32.

Medical Examination.

- An officer finally selected by Government for promotion to any of the cadres, if already in permanent Government

Service will not be required to undergo further medical examination. If in temporary service, they will be required to furnish a medical certificate in accordance with the provisions of the Rule 52(A) of the Bihar Service Code.

Part V ? Probation and Confirmation in the Bihar Co-operative Service

33.

Probation.

(1)

Every officer shall, on appointment in a substantive vacancy in the cadre of the Service will be placed on probation. Except, where otherwise provided by the Governor, the period of probation shall be of two years. The period of probation shall, in each case, count from the date of joining.

(a)

In cases in which the requirements of Rule 35 are satisfied, the period during which a person has held officiating or temporary appointment in a post in the service may, subject to a maximum period of two years be allowed by the Governor to count towards the period of probation prescribed by this Rule, provided that in any case the date of confirmation shall not be earlier than the date on which he joined on probation.

(b)

The Governor may, in any special case, extend the period of probation by such further period as he may deem fit.

(2)

The Governor may during or at the end of the period of probation, terminate the appointment of an officer directly recruited to the Service or revert a promoted officer to his substantive appointment if the officer has failed to fulfil the conditions of his probation or is found to be otherwise unfit for permanent appointment to the Service.

34.

Confirmation.

- Subject to the provisions of Rule 33 an officer appointed on probation shall be confirmed at the end of the period of his probation if he has passed the Departmental Examination by the prescribed standard and if the State Government consider him fit for confirmation.

Part VI ? 35. Departmental Examination.

- Liability of Officers to pass departmental examination.

(1)

Every Gazetted Officer in the Co-operative Department is required to pass departmental examination prescribed before confirmation. The subjects and standards of examination are detailed below:-

The examination shall be with books. The test shall be the same for both the lower and the higher standard. But an officer to pass by the higher standard will have to acquire a mere intimate knowledge of the Act and Rules. The examination shall be in the following papers:-

Subject

Maximum Marks

Number of marks required to pass the Exam. by

Time

Lower Standard

Higher Standard

1

2

3

4

5

Part-I

General Law (for Officers on Administrative Wing only)

100

40

60

3 hours

or

Advanced Accounting & Book Keeping (for officers of Audit Wing Only)

100

40

60

3 hours

Part-II

Revenue Law

100

40

60

3 hours

Part-III

Accounts

100

50

50

3 hours

Part-IV

Hindi (in Dev Nagari Script)

100

50

50

3 hours.

Prescribed Acts and Regulations

The Act and Regulations from which questions shall be set are noted below:-

Part I ? {

| -

| Sl. No.

| Act

| Subject to short titles

| -

| 1.

| General Law-XIV of 1960

| The Indian Penal Code ACT, XLV of 1960 with Special

References to Chapters 2, 4, 10, 17.

| -

| 2.

| Act-I of 1872

| The Indian Evidence Act, ACT No. 1 of 1872 omitting Chapters VIII and X.

| -

| 3.

| Act 5 of 1898*

| Code of Criminal Procedure. Act V of 1898* with Special reference to Chapters 1,4, 7,15,16,25, 26, 81, 82. [* Presently Code of Criminal Procedure, 1973.]

| }

Part II ? {

| -

| 1.

| Revenue Law

| Bihar Co-operative Societies Act,

Act VI of 1935, Co-operative Societies Rules, Bye-Laws of Central

Co-operative Banks, Vyapar Mandals and Multipurpose Coop

Societies. Public Demands Recovery Act, ACTVI of 1914.

Agriculturist Loans Act, Bihar Tenancy Act (Chotanagpur

Tenancy Act, Santhal Parganas Regulations.

|}

(v)

(a)

Any officer of the Bihar Co-operative Services posted in the areas mentioned in the Part I of the Appendix "C" will have to pass the examination in the Tribal language mentioned therein against the district in which he is posted by the Lower standard, within a period of 18 months from the date on which he is posted to that district, if he fails to do so his increment will be stopped until such time he passes the examination:

Provided that if an officer is prevented from passing the examination by circumstances beyond his control Government may grant him such further time for passing the examination as they consider fit.

(b)

An officer whose increment has been stopped for failure to pass the Compulsory Examination in a Tribal Language shall get his increment as soon as he is transferred to a District outside the areas mentioned in Part I of the Appendix 'C' or as soon as he crosses the age of 50 years whichever is earlier.

(c)

The stoppage of increment under sub-rule (a) or sub-rule (b) of this Rule shall not have cumulative effect.

(d)

An officer posted in Bihar outside the areas mentioned in Part I of the Appendix 'C' will be eligible to appear at the optional Examination in the Tribal Language mentioned in Part II of the Appendix 'C'.

36.

Disqualification caused by failure to pass Departmental Examination.

(1)

An Officer appointed to the Service prior to the 1st day of September, 1974, shall be entitled to draw his first increment in his pay after one year's duty, even though he may still be on probation. No Officer appointed to the Service on or after the aforesaid date, shall draw his first increment in pay falling within the period of probation, unless, he passes the Departmental Examination in Accounts mentioned in Rule 35 before the date of such increment and Hindi Examination by the lower standard.

Part III ? {}

|-

| 1.

| Accounts

| Bihar Service Code, Bihar Financial Rules Volume I &

II, Treasury Code, Board's Miscellaneous Rules, Budget and

Accounts Procedure.

|}

Part IV ? ** 1. Language Examination (Hindi). - There will be only one standard in the Language (Hindi) Examination (in Devnagri Script). An officer shall be required to pass the examination before he is confirmed and allowed first increment.

Text Books:

The following are the text books prescribed for Language

Examination:-

Hindi Praveshika Part I & II Published by the

Superintendent of Government Printing Bihar, Gulzarbagh, Patna.

(a) An officer of the Class II (Senior Branch) shall be

required to pass by both lower and higher standards and an

officer of the Class II (Junior Branch) by the lower standard

only.

(b) No officer of Class II (Junior Branch) will be eligible for promotion to Class II (Senior Branch) unless he has passed the departmental examination in all subject by higher standard.

(iii)

*Every Officer of the Bihar Co-operative Service (in the administrative wing) is required to prepare a fully complete and careful record of two award cases tried by him.

(iv)

*Every Officer of the Bihar Co-operative Service (in the Audit Wing) is required to prepare a fully complete and careful record of two Audit Reports of functioning societies, of special type, audited by him.

Part VII ? * Training

37.

Training.

- The period of training ordinarily be for Six months and a programme of training shall be approved by Registrar. During the period of the training, the trainee shall be attached either with Deputy Registrar, District Cooperative Officer or an experienced Assistant Registrar. The break-up of the six months' training will be as follows:-

Sl. No.

Subject

Periods

1.

Study of Co-operative Laws, Rules & Bye-Laws and Co-operative Administration

3 weeks

2.

Organization of Societies, registration, Annual General Meetings, Committee Meetings Haisiat Registrars, loan application, liquidation etc.

3 weeks (Sic)

3.

Accounts and Audit of Co-operative including those of Central Co-operative Banks, test audit, audit notes, rectification reports etc.

3 weeks

4.

Study of Co-operative Farming, short, medium and long time financing. Financing of agricultural societies, Industrial and other types of Societies.

3 weeks

5.

Inspection of different types of Primary and affiliating societies-Multipurpose Co-operative Societies, Industrial, Handloom, Khadi, Farming, Vyapar Mandal, Central Banks, etc.

6 weeks

6.

Study of the set-up of apex institutions, State Co-operative Banks, State Marketing Union Ltd.

2 weeks

7.

To work with Joint Registrar, Co-operative Societies and Special Deputy Registrar, Co-operative Societies.

4 weeks

24 weeks (6 months)

At the completion of training under each item, the Probationer Officer will be required to prepare a note on the subject which should be submitted to the Officer with whom he is attached. At the end of the training period of six month, the Officer giving training will send a special report to the Registrar, on how the Probationer Officer has been trained and whether he has acquired necessary experience to be put in-charge of the Circle.

Part VIII ? * Pay and Advancement on the time scale and determination of seniority.

38.

Time Scale of Pay for Officers of the 3 Branches of the Bihar Cooperative Service.

- The time scale of pay sanctioned for officers of the 3 branches of the Bihar Co-operative Service is as follows:-

Year of Service

Class II Junior Branch

Class II Senior Branch

Class-I

1

2

3

4

1st

455

510

620

2nd

470

535

655

3rd

485

560

690

4th

500

585

725

5th

515

610

760

6th

530

640

795

7th

545

670

830

8th

560

700

865

9th

580

730
900
10th
600
760
935
11th
620
790
970
12th
640
820
1005
13th
660
850
1040
14th
680
880
1075
15th
700
910
1110
16th
720
945
1150
17th
740
980
1190
18th
765
1015
1235
19th
790
1050
1280
20th
815
1085
1325
21st
840
1120
1325
22nd

1155

1325

23rd above

39.

Fixation of Initial pay on Promotion.

- The initial pay of an officer from a lower post to a higher post will be regularized (sic) according to the provisions in the Bihar Service Code and Bihar Executive Orders of the Government issued from time to time.

40.

Crossing Of Efficiency Bar.

- Where an efficiency bar is prescribed in a time scale, the incumbent (sic) next above the bar shall not be given to a Government servant (sic) without the specific sanction of the authority empowered to with-held increment. (sic).

41.

Seniority.

- Seniority of officers appointed to the service shall be determined in accordance with the instructions issued by the State Government from time to time.

By order of the Governor of Bihar

(R. K. Srivastava.)

Secretary to the Government, Department of Co-operation, Bihar, PATNA.

Memo. No. 281 Patna, the 10th February, 1976.

Appendix-'A'

Administrative

Audit wing

Bihar Co-operative Service Class-I

(a)

Joint Registrar, Co-operative Societies.

(a)

Addl. Registrar, Co-operative Societies (Audit) or/and Joint Registrar, Cooperative Societies (Audit).

(b)

Deputy Registrar, Co-operative Societies.

(b)

Deputy Chief Auditor, Co-operative Societies.

(c)

Any other post in the department in the scale of Deputy Registrar.

(c)

Any other post in the Department in the scale of Deputy Chief Auditor.

Bihar Co-Operative Service Class-II (Senior Branch)

(a)

District Co-operative Officer

Nil.

(b)

Principal, Co-operative Training Centre.

(c)

Any other post in the department in the scale of District Co-operative Officer.

Co-Operative Service Class-II (Junior Branch)

(a)

Assistant Registrar, Co-operative Societies.

(a)

District Audit Officer Co-operative Societies.

(b)

Lecturers, Co-operative Training Centres.

(b)

Any other post in the Department in the scale of District Audit Officer, Cooperative Societies.

(c)

Any other post in the department in the Scale of Assistant Registrar, Co-operative Societies.

Appendix-B

Instructions Governing Refund of Admission and Examination Fees

Application fee will not ordinarily be refunded. If however, for any reason a candidate is unable to sit at the examination, half of the examination fee may be refunded on application to the Secretary to the Commission:

Provided that the Secretary to the Commission may sanction refund of:-

(i)

90 percent of the fees paid when a candidate after paying the fees does not submit an application;

(ii)

Whole for application and/ or examination fee paid, as the case may be, where an alteration is made in the terms of advertisement or in the conditions of recruitment so that the candidate who would otherwise have been eligible, becomes ineligible due to such alteration; and

(iii)

Whole of the application and/or examination fee paid, as the case may be, if the vacancies advertised are decided by Government to be abolished or accepted in abeyance, before and after the candidates are interviewed.

Appendix-C

Study of Tribal Language

Part-1 Compulsory examination in tribal languages. - 1. An Officer posted in the areas mentioned below must pass the compulsory examination in the tribal language noted against the district in which he is posted:-

1.

Hazaribagh

Santhali

2.

Ranchi

Mundari

3.

Palamau

Orson

4.

Singhbhum

Ho

5.

Santha Parganas

Santhali

6.

Dhanbad (only Chas and Chandan Kiaripolice Station of Baghmara Sub-division) of the District of Dhanbad.

Santhali

2. The test which a candidate must undergo at the compulsory examination are as follows:-

(a)

He must be able to converse freely with the people of the tribe to understand and to make himself understood by them;

(b)

He must write down sentences spoken in the tribal languages by one of the tribes and must explain the sentences correctly in English or Hindi; and

(c)

He must translate from English or Hindi in to tribal language sentences, not of more difficult nature than those described in clause (b) and the translation must be substantially a correct and intelligible to people of the tribe in whose language it is written.

3. (a) The standard prescribed for the compulsory examination is the lower standard. In order to pass by this standard, the examinee must obtain not less than 50% of the marks allotted to each branch of examination and 66 2/3 percent of the aggregate.

(b)

The examinee shall be declared to have passed by the higher standard if he obtains not less than 69 percent of the marks allotted to each branch of the examination and 70 percent of the aggregate. Passing by the higher standard shall be optional for all officers. An officer who passes by the lower standard shall be eligible to re-appear at the examination for the higher standard, while an officer who passed by the higher standard shall be declared to have passed by that standard even though he has not previously passed by the lower standard.

4. Notwithstanding anything contained in paragraphs 2 & 3 above, the compulsory examination in the case of officers who have put in 15 years or more of service, shall consist only of an oral test, in which the examinee must be able to converse freely with the people of the tribe to understand and to make himself understood by them. In this test the examinee shall be declared to have passed, if he secures not less than 50 percent of the marks.

5. If an officer is posted to one of the districts named in paragraphs 1 of this Appendix and duly Passes the examination in the tribal language prescribed for the district, and is subsequently posted to another district named in the same paragraphs, for which a different tribal language is prescribed, it shall not be necessary for him to pass the examination the tribal language of the latter district.

6. If an officer knows one of the languages contained in paragraph 1 of this Appendix as his mother tongue, and is posted to a district for which that very language has been prescribed as the compulsory tribal language he shall not be required to pass the compulsory examination in that language. If, however, he is posted from the tribal language which he knows as his mother tongue, he shall be required to pass the compulsory examination in the tribal language of the district.

7.

Examination in the tribal languages shall be held once in six month, in January and June each year. The Commissioners of Chotanagpur and Bhagalpur Divisions will be responsible for conducting these examinations. There shall be uniformity in the standard of examinations held in both the divisions. The same set of question papers shall be set for examination in one particular language to be held on a particular date. The examination shall be held at the district headquarters and the District Officer shall, under the supervision and control of the Commissioner, be made responsible for conducting the examination. In case the District Officer has himself to appear at a particular examination, he will go to the divisional headquarters to appear at the examination in the presence of the Commissioner, and arrangements for holding the examination at the district headquarters will be supervised by the Additional Collector. If the Additional Collector himself has to appear at the examination, it should be arranged that he and the District Officer appear on different dates. Different sets of question paper will be set for the examination held on different dates.

8. The prescribed text book in the Tribal Languages are the following:-

Name of languages

Name of prescribed text book

1.

Santhali

Santhali Praveshika, Parts I & II by Sri Doman Sah,
'Samir' Editor of the "Hore Sambad" published by
Santhal Paharia Seva Mandal, Deoghar.

2.

Mundari

A Mundari Grammer with exercises by R.V.J. Hoffman, S. J.
Catholic Mission, Ranchi.

3.

Oraon

Kath Ara Rath Billin Jan (sic.?) by Dr. Christ Michel Tigga,

K. S. Kadru, Ranchi.

4.

Ho.

Ho Kaji by Sri Bhim Ram Salaniri, Chaibasa.

9. Rewards will be given as mentioned below to candidates who passed the examination mentioned in paragraph 1 of this Appendix, within the stipulated time, subject to the condition that from all rewards granted any rewards previously drawn for the same language will be deducted:-

Lower Standard

Higher Standard

Officers of Class-I

750/-

1000/-

Officers of Class-II

500/-

800/-

Officers of Class-III

250/-

400/-

Note I. - An Officer, who appears only at the oral test, as provided in paragraph 4 above, shall not be entitled to any reward.

Note II. - No reward shall be given to any Officer for proficiency in paragraph Language of the same group. The groups are:-

Group-I

Ho, Mundari, Santhali

Group-II

Oraon, Rajmahal, Paharia.

Group-III

Nepalese, Paharia or Khas Kura.

10. The Commission conducting the examination will report to Government the names of Officers declared to have passed by each standard.

Part II ? Rules for the optional study of Tribal Languages.

11. Officers Posted out side the area mentioned in Part-I of this Appendix will be eligible to appear at the optional examination in the Languages noted below:-

Group-I

Ho, Mundari, Santhali

Group-II

Oraon, Rajmahal, Paharia.

Group-III

Nepalese, Paharia or Khas Kura.

12. The test which a candidate must undergo shall be as in Part-I of this Appendix. In addition, the examination in Nepalese, Paharia shall include a test in which the examinee must transliterate and translate into English or Hindi a Paper in the current written [not printed] form of character of this Language.

13. The standards of the optional examination and the percentage of marks required for passing by each standard shall be the same as for the compulsory examination in other Tribal Languages laid down in paragraph 3 of this Appendix.

14. The examination shall be conducted under the control of the Commissioners, Chotanagpur and Bhagalpur Divisions, who will convene local committees for the purpose.

Commissioner of Bhagalpur

Group-I

Santhali

Group-II

Rajmahal, Paharia.

Group-III

Nepalese, Paharia.

Commissioner of Chotanagpur

Group-I

Ho, Mundari.

Group-II

Oraon.

15. The rewards to be given to successful candidates will be as detailed below subject to the condition that from all rewards granted any rewards previously drawn for the same language are deducted:-

Lower StandardRs.

Higher StandardRs.

For all Languages except Nepalese Paharia.

Officers of Class-I

750/-

1000/-

Officers of Class-II

500/-

800/-

Officers of Class-III

250/-

400/-

For Nepalese Paharia.

Officers of Class-I

250/-

500/-

Officers of Class-II

150/-

300/-

Officers of Class-III

50/-

100/-

16. The Commissioners, Chotanagpur and Bhagalpur Divisions will report to Government the names of Officers declared to have passed by each standard.

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Translation